

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

Date Filed:

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J. W., an infant under the age of
18 years by his mother and natural
guardian JENNY CASTILLO, and
JENNY CASTILLO, individually,

SUMMONS

Plaintiffs designate Queens
County as the place of trial

Plaintiffs,

The basis of venue is
site of occurrence

-against-

CITY OF NEW YORK and
POLICE OFFICER "JOHN" BOYLE,

Plaintiffs reside at
Far Rockaway, New York 11692
County of Queens

Defendants.

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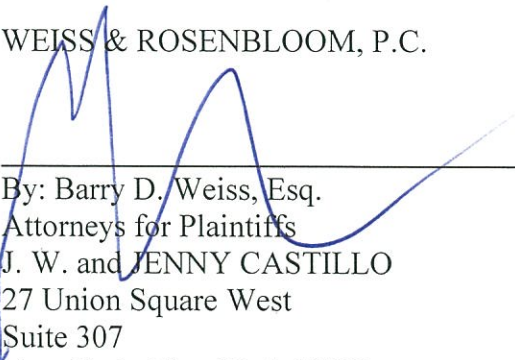
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
August 10, 2016

Yours, etc.,

WEISS & ROSENBLUM, P.C.

By:  Barry D. Weiss, Esq.
Attorneys for Plaintiffs
J. W. and JENNY CASTILLO
27 Union Square West
Suite 307
New York, New York 10003
(212) 366-6100
service@weissandrosenbloom.com

TO:

CITY OF NEW YORK
100 Church Street
New York, New York 10001

POLICE OFFICER "JOHN" BOYLE
New York City Police Department- 113th Precinct
167-02 Baisley Boulevard
Jamaica, New York 11434
or
New York City Police Department
One Police Plaza
New York, New York 10007

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J. W., an infant under the age of
18 years by his mother and natural
guardian JENNY CASTILLO, and
JENNY CASTILLO, individually,

VERIFIED COMPLAINT

Plaintiffs,

-against-

CITY OF NEW YORK and
POLICE OFFICER "JOHN" BOYLE,

Defendants.

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Plaintiffs, J. W. and JENNY CASTILLO, by their attorneys, WEISS &
ROSENBLOOM, P.C., respectfully allege, upon information and belief, as follows:

1. At all times herein mentioned, infant plaintiff, J. W., was and still is a resident of the
County of Queens, City and State of New York.

2. The cause of action alleged herein arose in the County of Queens, City and State of
New York.

3. This action falls within one or more of the exceptions as set forth in CPLR §1602.

4. Defendant, CITY OF NEW YORK, is a municipal corporation organized and existing
under and by virtue of the laws of the State of New York.

5. Infant plaintiff, J. W., has duly complied with all the conditions precedent to the
bringing of this action and in particular, has, on October 30, 2015 and within the time prescribed
by law, duly served upon defendant, CITY OF NEW YORK, a Notice of Intention to Make
Claim stating, among other things, the time when and place where the injuries and damages were
sustained, and more than thirty (30) days have elapsed since the presentation of said notice of

claim, and such claim remains unadjusted and unpaid, and thereafter, and within the time provided by law, this action was commenced.

6. On May 2, 2016, a hearing pursuant to General Municipal Law 50(h) was conducted.

7. This action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. Defendant, POLICE OFFICER “JOHN” BOYLE, is and at all relevant times was, an employee of defendant, CITY OF NEW YORK, his shield number is 17906, and his place of business is the 113th Precinct.

9. At all relevant times, defendant, POLICE OFFICER “JOHN” BOYLE, was acting under the color of state law and in the scope of his employment with defendant, CITY OF NEW YORK.

FACTUAL ALLEGATIONS

10. On September 2, 2015, at approximately 8:00 p.m., infant plaintiff, J. W., was lawfully inside premises located at 120-63 167th Street, in the County of Queens, City and State of New York (the “Premises”).

11. On September 2, 2015, at approximately 8:00 p.m., defendant, POLICE OFFICER “JOHN” BOYLE, while acting within the scope of his employment as a New York City police officer and while on duty as such, entered the Premises and detained, arrested and confined infant plaintiff, J. W.

12. Defendant, POLICE OFFICER “JOHN” BOYLE, while acting within the scope of his employment as a New York City police officer, arrested infant plaintiff, J. W., without just or probable cause, beat infant plaintiff in the face, handcuffed infant plaintiff and caused and permitted an illegal search and detention of infant plaintiff to take place.

13. On or about September 2, 2015, at approximately 8:00 p.m., infant plaintiff, J. W., was taken to the 113th precinct in handcuffs by defendant, POLICE OFFICER “JOHN” BOYLE, and detained there in handcuffs.

14. On or about September 2, 2015, at approximately 8:30 p.m., infant plaintiff, J. W., was released from custody without being charged with any crime or violation and subsequently transported by ambulance to North Shore Long Island Jewish Hospital.

AS AND FOR A FIRST CAUSE OF ACTION

15. Defendant, POLICE OFFICER “JOHN” BOYLE, while acting within the scope of his employment as a New York City Police Officer and while on duty as such, during his arrest of infant plaintiff, J. W., assaulted, battered and otherwise used non-privileged excessive and unnecessary use of force against him in violation of law.

16. Defendant, City of New York, is liable for the acts of their employees under the theory of respondeat superior.

17. As a result of the foregoing, infant plaintiff, J. W., was caused to sustain severe physical and psychological trauma.

18. The above mentioned occurrence and the results thereof were caused solely by the negligence, recklessness and/or gross negligence of defendants, CITY OF NEW YORK and POLICE OFFICER “JOHN” BOYLE, and/or said defendants' servants, agents, employees and/or licensees.

19. No negligence on the part of the infant plaintiff, J. W., contributed to the occurrence alleged herein in any manner whatsoever.

20. By reason of the foregoing, infant plaintiff, J. W., was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

21. Infant plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 20 above as if fully set forth herein.

22. Defendant, POLICE OFFICER “JOHN” BOYLE, unlawfully arrested and confined infant plaintiff, J. W., without just or probable cause against his will and without the privilege to do so as the arrest was knowingly made without probable or just cause, in violation of law.

23. As a result of the aforesaid conduct by defendant, POLICE OFFICER “JOHN” BOYLE, infant plaintiff, J. W., was caused to sustain severe psychological trauma.

24. The above mentioned occurrence and the results thereof were caused solely by the unlawful acts of defendants, CITY OF NEW YORK and POLICE OFFICER “JOHN” BOYLE, and/or said defendants’ servants, agents, employees and/or licensees.

25. By reason of the foregoing, infant plaintiff, J. W., has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

26. Infant plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 25 above as if fully set forth herein.

27. By their aforementioned conduct, defendant, POLICE OFFICER “JOHN” BOYLE, under color of law, deprived infant plaintiff, J. W., of his constitutional right to be free from excessive and unreasonable use of force pursuant to 42 U.S.C. SECTION 1983 causing the aforementioned damages.

28. By reason of the foregoing, infant plaintiff, J. W., was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

29. Infant plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 28 above as if fully set forth herein.

30. By their aforementioned conduct, defendant, POLICE OFFICER “JOHN” BOYLE, under color of law, deprived infant plaintiff, J. W., of his constitutional right to be free from false arrest and false imprisonment pursuant to 42 U.S.C. SECTION 1983.

31. By reason of the foregoing, infant plaintiff, J. W., was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

32. Infant plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 31 above as if fully set forth herein.

33. Upon information and belief, defendant, POLICE OFFICER “JOHN” BOYLE, exhibited malicious and/or violent propensities prior to September 2, 2015 that were well known to defendant, CITY OF NEW YORK.

34. Upon ascertaining the malicious and/or violent propensities of defendant, POLICE OFFICER “JOHN” BOYLE, defendant, CITY OF NEW YORK, still retained said defendant in a position and place of power, allowing him to function as a police officer, when in point and in fact, he was not qualified to do so due to his malicious and violent propensities.

35. As a result of the foregoing, infant plaintiff, J. W., was caused to sustain physical and psychological trauma.

36. By reason of the foregoing, infant plaintiff, J. W., has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

37. Infant plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 36 above as if fully set forth herein

38. The conduct of defendant, POLICE OFFICER “JOHN” BOYLE, is so shocking that it warrants an award of punitive damages.

39. By reason of the foregoing infant plaintiff, J. W., has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

AS AND FOR SEVENTH CAUSE OF ACTION

40. Plaintiff, J. W., repeats and realleges each and every allegation set forth in paragraphs 1 through 39 above as if fully set forth herein

41. At all times herein mentioned, plaintiff, JENNY CASTILLO, was and still is the mother of infant plaintiff, J. W., and, as such, is entitled to his services, society and companionship, and is responsible for his care, maintenance, support and attention.

42. Solely as a result of the negligence, carelessness and recklessness of defendants, CITY OF NEW YORK and POLICE OFFICER “JOHN” BOYLE, plaintiff, JENNY CASTILLO, was deprived of the services, society and companionship of infant plaintiff, J. W., and was compelled to expend and become liable for diverse sums of money in an effort to cure infant plaintiff, J. W., of injuries.

43. As a result of the permanent and lasting nature of infant plaintiff, J. M.’s injuries, plaintiff, JENNY CASTILLO, will continue to be deprived of the services, society and companionship of infant plaintiff, J. M., and will continue to be liable for diverse sums of money in an effort to cure infant plaintiff, J. M., of injuries.

44. Solely as a result of the negligence, carelessness and recklessness of defendants, CITY OF NEW YORK and POLICE OFFICER "JOHN" BOYLE, plaintiff, JENNY CASTILLO, has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, J. W. and JENNY CASTILLO, demand judgment against defendants, CITY OF NEW YORK and POLICE OFFICER "JOHN" BOYLE, on each and every cause of action in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of these actions.

Dated: New York, NY
August 10, 2016

Yours, etc.,

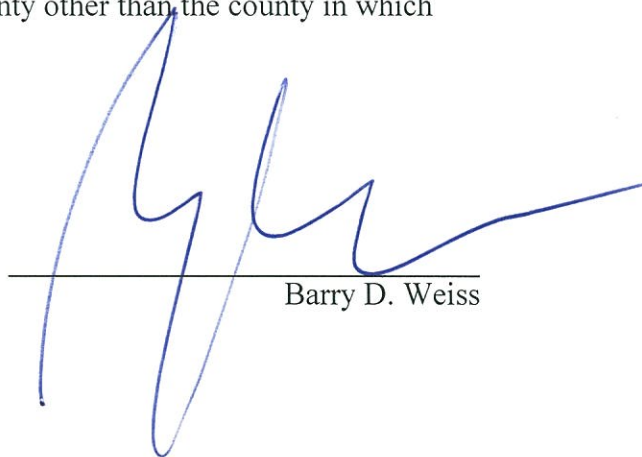
WEISS & ROSENBLUM, P.C.

By: Barry D. Weiss, Esq.
Attorneys for Plaintiffs
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27 Union Square West
Suite 307
New York, New York 10003
(212) 366-6100
service@weissandrosenbloom.com

VERIFICATION

Barry D. Weiss, an attorney duly admitted to practice before the Courts of the State of New York, affirms under penalty of perjury as follows:

I am a member of Weiss & Rosenbloom, P.C., attorneys of record for J. W. and JENNY CASTILLO, individually, plaintiffs in the within action. I have read the contents of the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters said to be upon information and belief and as to those matters, I believe them to be true. My belief as to all matters not stated upon my knowledge are as follows: file maintained by Weiss & Rosenbloom, P.C. and information supplied by the clients. This verification is made by me because plaintiffs reside in a county other than the county in which my office is located.



Barry D. Weiss

Affirmed August 10, 2016

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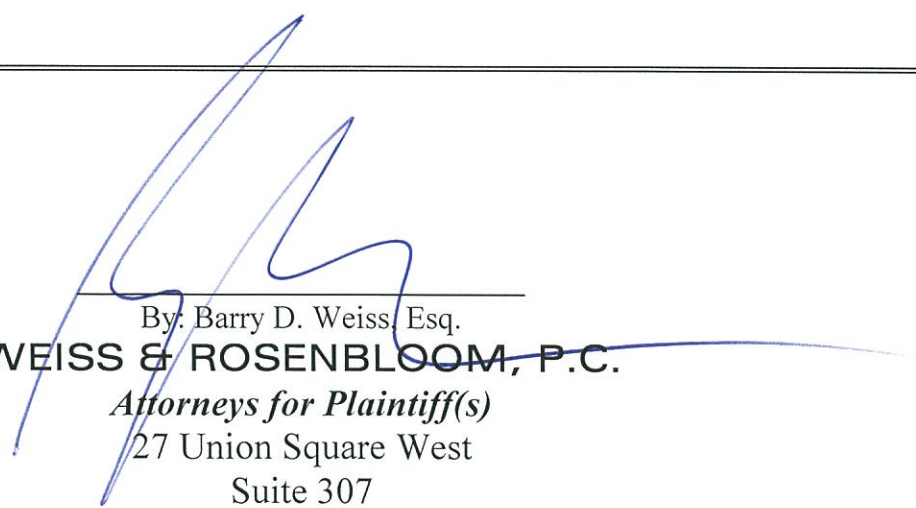
Plaintiffs,

-against-

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SUMMONS AND VERIFIED COMPLAINT



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